

**-Superior Court of the State of California
County of Orange**

**Hon. ANDRE MANSSOURIAN
Department C12 – (657) 622-5212**

TENTATIVE RULINGS

Court will make every effort to post tentative rulings by approximately 3:00 p.m. the court day before the date the motion is to be heard.

If the parties agree to submit on the Court's tentative ruling, please call Department C12 directly to inform the court that **all parties** submit to the Court's tentative ruling.

Reminder: Court does NOT provide court reporters.

No filings or briefs of any kind will be accepted after the tentative ruling is posted.

Parties are welcome to be present in court for the law and motion calendar or appear by Zoom. To make an appearance via Zoom please click the following link. If you are unable to log in, please call the department for an alternative arrangement. <https://www.occourts.org/civil-remote-hearings>.

July 24, 2026

#	Case Name	Tentative
1.	Kennedy vs. Emanuel 22-01248389	1. Motion to Seal 2. Motion to Seal (previously scheduled for July 31, 2026) The Court will note the parties agreed to advance the Motion to Seal set for July 31, 2026, to this date. Plaintiffs Drake Kennedy and Stephanie Kennedy's Motions to Seal (ROA Nos. 1834 and 1851) are GRANTED. (Cal. Rules of Court, Rule 2.551, subd. (b).) The Court finds that Plaintiffs have made a sufficient factual showing to justify sealing. The clerk is directed to file the underacted versions of the Jackson Tidus documents attached as Exhibits 3-7 (the "Jackson Tidus Exhibits") to the Conditionally Under Seal Declaration of David C.

		Palmer in Support of Plaintiffs’ Response to Defendants and Non-Party KBS Holdco, LLC dba Regency Outdoor Advertising’s Objection to Report and Recommendation of Discovery Referee UNDER SEAL. NOTE: The Court notes Plaintiff filed a Notice of Lodging Documents Conditionally Under Seal on 3/9/26 (ROA #1845) referencing the Conditionally Under Seal Declaration of David C. Palmer in Support of Plaintiff’s Reply in Support of Motion to Compel Further Deposition of Third Party Michael Tidus. However, no such document has been received by the Court. Plaintiff is directed to electronically submit the Under Seal Declaration of David C. Palmer in Support of Plaintiff’s Reply in Support of Motion to Compel Further Deposition of Third-Party Michael Tidus pursuant to this order. The redacted versions of these filings will remain as a publicly accessible record of this case. THESE RULINGS ARE FINAL Plaintiffs to give notice of each ruling.
2.	Ramirez vs. Laurelmont Community Association 24-01419703	Motion for Leave to File Amended Complaint Plaintiffs Christina Ramirez and Kenneth Johnson’s motion for leave to file a Third Amended Complaint is GRANTED. (Code Civ. Proc., § 473, subd. (a)(1); <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761 [“policy of great liberality in permitting amendments”]; <i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048 [“[i]t is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment”].) Defendant ServiceFirst Restoration, Inc., the only party who has opposed the motion, has not substantiated any claimed prejudice, nor shown any other grounds to deny the motion sufficient to overcome the liberal policies favoring amendment. Further, whether the proposed new claims are legally sufficient, or factually meritorious, may be determined later. (<i>Kittredge Sports Co. v. Superior Court</i>, <i>supra</i> at 1048 [“the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings”].)